

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 25, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at Storey Gym, 2811 House Ave., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel (via Zoom), Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Johnson and Mr. White, agenda item #20(b) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 11, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a restaurant liquor license application filed with the City Clerk’s Office for Penstemon Business LLC d/b/a Bella Fuoco, 2115 Warren Ave., Cheyenne, WY 82001. Upon inquiry, City Clerk Kris Jones explained the business currently holds a restaurant license but due to new owners a new license was applied for. There being no further comments or input, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Amending Section 2.76.020(B), Members-Terms-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming (Postponed from October 11, 2021). Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. White. Upon inquiry, City Attorney Stefanie Boster explained a memorandum was presented to members of the governing body that advised the proposed ordinance amendment brings the city into compliance with state statute. Ms. Boster confirmed the ordinance clarifies who may appoint the council representative to the Downtown Development Authority Board (DDA). Ms. Boster explained that state statute implies either the Mayor or governing body can make the council representative appointment and the language in the statute does not use the term “Council President” and that it refers to the governing body. Ms. Boster advised her interpretation of the statute is the legislative intent was for the governing body to make the decision and that the appointment could be made by the Mayor or Council President. Comments were made that the DDA Board is one of 22 boards where the Council President has typically made the

appointment of the respective Council Representative and that only a few require governing body approval. Discussion continued on history of the board noting the council member appointee is usually a long-term appointment and City Code Section 2.76.020 relating to the council representative appointment and the reorganization of DDA Board Authority. Continued support and opposition were voiced by members of the governing body citing state statute, city code and past practices, and general desire for consistency across the board. It was noted that sections (a) and (b) in state statute 15-9-205 appear to be conflicting relating to this particular council representative board appointment. Motion failed due to a tie vote on 3rd and final reading. Voting “yes” – Mr. Cook, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White. Voting “no” - Dr. Aldrich, Mr. Esquibel, Mayor Collins, Mr. Laybourn and Mr. Segrave.

ORDINANCE – 3rd READING – Amending the Unified Development Code (UDC) to clarify the interpretation of Lots and amend Accessory Building Regulations. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute dated October 18, 2021, seconded by Mr. Segrave. Upon inquiry, Connor White, Planning and Development, explained the substitute noting there is a text change from “through lot” to “double fronted lot” to match the rest of the ordinance. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#4398)

ORDINANCE – 3rd READING – Amending the Unified Development Code (UDC) modifying the Density Standards of UDC 5.1.5D “Multi-Dwelling Buildings (Apartment)” Lot Types. Dr. Rinne moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4399)

ORDINANCE – 3rd READING – Amending the Unified Development Code (UDC) to modify the MUR, MUB, and MUE zone districts’ intent, context, and transitions. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4400)

ORDINANCE – 2nd READING – Creating a new Section 10.04.110, Amnesty Program, of Chapter 10.04, General Provisions, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. Roybal moved to approve on second reading, seconded by Dr. Aldrich. Upon inquiry, Deputy City Attorney Alessandra McCoy Fakelman, explained she is working to understand the parking program and is looking to introduce a companion resolution in the near future. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute dated October 19, 2021, seconded by Mr. Segrave. Mayor Collins advised the substitute is due to the county changing their zoning, therefore, correcting our document. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to MR Medium-Density Residential for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute dated October 19, 2021, seconded by Mr. Segrave. Mayor Collins advised the substitute is due to the county changing their zoning, therefore, correcting our document. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) to modify Articles 2.1 and 2.2 regarding posted and published notice requirements for divisions of land and zoning applications – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending Section 15.08.031, Building Permit Fees-Exceptions for Incentivization Program, of Chapter 15.08, International Building Code Adopted, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming, to reinstate the City of Cheyenne Core Development Incentivization Program – referred to Finance Committee. (Sponsors – Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White)

RESOLUTION – Authorizing submission of an application to the Wyoming Water Development Commission for grant funding for the Crystal Bypass Pipeline Project in the amount of \$2,546,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents. Frank Strong, Cheyenne Board of Public Utilities (BOPU), provided information on the grant and project stating the resolution and following resolution are for the BOPU to apply for funding for the Crystal Bypass and noted the project will allow for water to be bypassed to allow for maintenance. Mr. Roybal moved to adopt, seconded by Dr. Aldrich. Comments were made related to applying for 2 separate grants and 2 different funding amount requests for the project and request was made for a review of how SLIB grants have been handled in the past. Upon inquiry, Mr. Strong explained most reservoirs have the capability for different water paths, but Crystal Reservoir does not have the capability. Appreciation was expressed to BOPU for their forward thinking related to the project. Motion carried. Voting “yes” – all members of the governing body. (#6182)

RESOLUTION – Authorizing submission of an application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Drinking Water State Revolving Fund for the Crystal Bypass Pipeline Project in the amount of \$1,254,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents. Mr. Roybal moved to adopt, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body. (#6183)

[CA] RESOLUTION – Granting an exception to the ‘201 Agreement’ for the owner of the property located at 2621 Granite Peak Drive to allow installation of on-site sewage holding tanks (septic system) located within the City. Motion (per Consent Agenda) carried. (#6184)

[CA] RESOLUTION – Granting an exception to the ‘201 Agreement’ for the owner of the property located at 8910 Hutchins Drive to allow installation of on-site sewage holding tanks (septic system) located within the City. Motion (per Consent Agenda) carried. (#6185)

Human Services Agreement between the City of Cheyenne and United Way of Laramie County to provide services to various community programs (2019-2022 1% Sales Tax). Mr. Roybal moved to approve in an amount of \$500,000.00, seconded by Mr. White. Mr. Roybal moved to amend by substitute dated October 21, 2021, seconded by Mr. Segrave. Deputy City Attorney Alessandra McCoy Fakelman advised the substitute contains a name change of one of the legal entities from Peak Wellness (Mental Health Services) to Volunteers of American Northern Rockies. Vicki Nemecek, Director of Public Works, added the agreement has been changed from a 2 year contract to a 1 year contract. Motion to amend carried. Voting “yes” – all members of the governing body. Upon inquiry, Rod Hottle, United Way, provided information on the following: request for 1 year contract and future request for 3 year contracts for the purpose of budgeting for the receiving agencies and for data analysis of the program, new application process in the future that will go out to the community for funding availability, explanation that United Way is vetting the application process for agencies and they are looking at a common agenda that looks at many different aspects and that will come back before the governing body for approval, past meetings held in 2020-2021 and participation of the council representative on the Human Services Advisory Council, influence of Human Services Advisory Council in determining funding awards, how funding from the City in the amount of \$10,500.00 is used which includes continuation of collecting reports, administration of funding, program data analysis and end of year reporting and the outside auditing agency that performs the annual independent audit which has not resulted in any issues. Upon inquiry, Ms. Nemecek advised prior to providing funding to the United Way to manage payment of funding awards, the city’s function was to complete requisitions for payment to the agencies. It was noted that Laramie County also makes payment to United Way to manage the funding awards. Ms. Nemecek explained the Human Services Advisory Council has existed for over a decade and the resolution is created every 4 years according to the 1% Sales Tax cycle. Mr. Hottle provided information on the process for agencies who are not chosen to receive funding and noted assistance is provided for future application opportunities and other ideas are vetted for optional funding resources. Mr. Hottle explained upon inquiry that 100% of the \$250,00.00 in funding goes to the agencies. Request was made to recirculate the annual report to members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#7434)

Agreement between the City of Cheyenne and the Wyoming Department of Transportation (WYDOT) for a Wyoming Rural Public Transportation Grant to assist in providing a local match for operating funds for the Transit Program for Fiscal Year 2022. Mr. Roybal advised the recommendation of the Finance Committee was to approve in an amount of \$282,885.00, however, it has come to the committee’s attention that matching funds are not required, therefore, the amount of the grant award is \$160,000.00. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Upon inquiry, Vicki Nemecek, Director of Public Works, advised the city receives \$160,000.00 and that

a match hasn't been required since 2009. Ms. Nemecek further noted that the city has requested WYDOT to change the agreement language, but it is the standard language and is what WYDOT has chosen to continue to utilize. Ms. Nemecek noted Casper and Cheyenne don't have to provide matching funds and the city has received a letter indicating that a match does not have to be provided. Motion carried. Voting "yes" – all members of the governing body. (#7435)

[CA] 2021-2022 Collective Labor Agreement between the City of Cheyenne, Wyoming, and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters. Motion (per Consent Agenda) carried. (#7436)

[CA] Grant Award Agreement between the City of Cheyenne and the Wyoming Office of Homeland Security for the purchase of two complete bomb suits – referred to Finance Committee.

[CA] Grant Award Agreement between the City of Cheyenne and the Wyoming Office of Homeland Security for the purchase of two Recon Robot Throwbot 2 – referred to Finance Committee.

[CA] Telecommunications Right-of-Way and Use Agreement between Uniti National LLC and the City of Cheyenne – referred to Finance Committee.

[CA] Juvenile Housing Agreement between the City of Cheyenne and Laramie County for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex – referred to Finance Committee.

[CA] Grant Award Agreement with the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2021 in the amount of \$106,817.35 for the Cheyenne Regional Response Team #7 – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Tourism Promotion Joint Powers Board, d/b/a Visit Cheyenne regarding the partnership to develop planning and design and implementation for a first phase of the Belvoir Ranch/Big Hole Project – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Robert Chamberlin to authorize filing of platting applications(s) for City-owned lands for the purpose of access and future development – referred to Finance Committee.

[CA] Subgrantee Agreement between the City of Cheyenne and Laramie County for the 2021 Byrne Justice Assistance Grant for community-oriented policing overtime and benefits and firearms accessories (JAG21 Grant) – referred to Finance Committee.

[CA] Subgrantee Agreement between the City of Cheyenne and Laramie County for FY 2021 Law Enforcement Mental Health and Wellness Act Grant (LEMHWA Grant) – referred to Finance Committee.

[CA] Lease Agreement between the State of Wyoming, Department of Wyoming State Parks and Cultural Resources, Division of State Parks, Historic Sites and Trails and the City of Cheyenne for lands in Curt Gowdy State Park – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and HDR Engineering, Inc., for the 5th Street Bridge Over Crow Creek Design Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7287 between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and Benchmark Engineers, PC, Cheyenne, for additional professional services for the Walterscheid Boulevard Reconstruction Plan (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$9,035.00). (#7287)

[CA] Contract Modification #1 to Contract #7286 between the City of Cheyenne and Summit Engineering for additional construction management services for the Construction Management Services for Multi-Use Underpass for Pedestrian and Bicycles on College Drive connecting the Laramie County Community College and Sweetgrass Development (LCCC Greenway Underpass Project) (6th Penny Greenway Funds) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6959 between the City of Cheyenne and Short Elliot Hendrickson, Inc., for additional engineering and construction management services for the Airport Parkway Pavement Rehabilitation Project (2018-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6606 between the City of Cheyenne and Trihydro Corporation for additional ground and surface water sampling at the Snyder-Ames Pumphouse Property (2018-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Bijou, Inc. d/b/a Capitol Cinema 16, 3410 Concord Rd., Cheyenne, WY 82001. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held November 8, 2021 at 6:00 p.m. at Storey Gym (LCSD#1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located north of the intersection of Old Happy Jack Road and Westland Road.

Under other business:

Mr. Johnson requested information on when updates are made to the website and online code with regards to ordinance changes. Charles Bloom, Director of Planning and Development,

advised UDC changes are typically added to the website within a week. City Clerk Kris Jones provided information on submitting information to the online code company noting there is a delayed process as the ordinances are codified through a third party company.

Mr. White expressed appreciation to the new Fire Union members, the City Attorney's office and Fire Department Chief Kopper for their collaborative efforts working towards the approval of the Collective Labor Agreement.

Appreciation was expressed to city staff members Jennifer McClelland, Michael Skinner and Kris Jones for their assistance in determining the LCSD #1 board room meets the needs for the council meeting.

Dr. Aldrich expressed appreciation to the Public Works Department for their quick assistance with a recent land ownership review and mowing and a stop sign repair.

Mr. Laybourn noted that his elected official career began 52 years ago today in the same meeting room (LCSD #1 Board Room) the council meeting was being held in.

Mr. Johnson requested citizens to reach out to members of the governing body and city officials if they have any questions related to how city tax dollars are being utilized, noting a recent incorrect reference to an electric scooter operation being paid for by city tax dollars.

Dr. Aldrich provided information on the upcoming 2021 Sixth Penny election noting the importance of voting on proposition projects.

Mayor Collins requested the governing body meet in executive session to discuss a proposed litigation to which the governing body may be a party. Mr. White moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(iii), to consider a matter involving proposed litigation to which the governing body may be a party, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public; requested the City Attorney, City Clerk, and Brad Brooks, Director of the Board of Public Utilities (BOPU) be in attendance and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk's Note: executive session convened at 7:17 p.m.).

Following closure of the executive session, Mayor Collins reconvened the regular meeting at 8:21p.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:21p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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